

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X INDEX NO.:

OSCAR FRANCOIS,

## SUMMONS

Plaintiff,

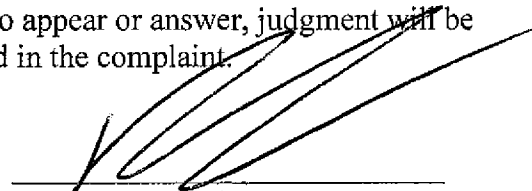
-against-

The basis venue is the  
place of occurrence:  
Intersection of Lydig Ave. &  
Cruger Ave., Bronx, NY 10462CITY OF NEW YORK, Sergeant TAMEIKA GOODE  
of the 49<sup>th</sup> Precinct, and Police Officer ANDREW  
KELLARD of the 49<sup>th</sup> Precinct Shield No. 25863,

Defendants.

-----X  
To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Garden City, New York  
June 22, 2018  
BY: RYAN B. CHARDER  
MORICI & MORICI, LLP  
Attorneys for Plaintiff  
OSCAR FRANCOIS  
1399 Franklin Avenue, Suite 202  
Garden City, New York 11530  
516-873-1902

## Defendants' Addresses:

CITY OF NEW YORK  
100 Church Street  
New York, New York 10007TAMEIKA GOODE  
C/O CITY OF NEW YORK  
100 Church Street  
New York, NY 10007

ANDREW KELLARD  
C/O CITY OF NEW YORK  
100 Church Street  
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
OSCAR FRANCOIS,

Plaintiff,

**VERIFIED  
COMPLAINT**

-against-

CITY OF NEW YORK, Sergeant TAMEIKA GOODE  
of the 49<sup>th</sup> Precinct, and Police Officer ANDREW  
KELLARD of the 49<sup>th</sup> Precinct Shield No. 25863,

Defendants.  
-----X

Plaintiff OSCAR FRANCOIS by his attorneys, MORICI & MORICI, LLP, complaining  
of the Defendants, respectfully alleges:

1. The plaintiff OSCAR FRANCOIS, is a resident of the State of New York,  
County of Bronx.

2. That at all times hereinafter mentioned, defendant CITY OF NEW YORK, was  
a municipal corporation, duly organized and existing under and by virtue of the laws of the  
State of New York

3. That at all times hereinafter mentioned, defendant CITY OF NEW YORK,  
maintained and controlled an agency called the New York City Police Department (NYPD).

4. That at all times hereinafter mentioned, defendant Sergeant TAMEIKA  
GOODE was a sergeant assigned to the 49<sup>th</sup> Precinct, Bronx County and employed by defendant  
CITY OF NEW YORK

5. That at all times hereinafter mentioned, defendant Police Officer ANDREW  
KELLARD was a police officer assigned to the 49<sup>th</sup> Precinct, Shield No. 25863, Bronx County  
and employed by defendant CITY OF NEW YORK.

6. That on June 2, 2017, within the statutorily obligated time, plaintiff OSCAR FRANCOIS served and filed his Notice of Claim with the Office of the New York City Comptroller (a copy of plaintiff's filed Notice of Claim is annexed hereto as **Exhibit 1**).

7. Plaintiff and defendant CITY OF NEW YORK have stipulated that plaintiff's hearing and/or physical examination pursuant to General Municipal Law § 50-h have been adjourned and that plaintiff may commence this action against defendant CITY OF NEW YORK prior to defendant CITY OF NEW YORK conducting a hearing and/or physical examination pursuant to General Municipal Law § 50-h (a copy of the stipulation between plaintiff and defendant CITY OF NEW YORK is annexed hereto as **Exhibit 2**).

8. That at least thirty (30) days have elapsed since the demand or claim upon defendant CITY OF NEW YORK and no settlement has been recorded with defendant CITY OF NEW YORK.

9. That on or about April 3, 2017, at approximately 6:05 p.m., in and around the area of the northwest corner of Lydig Avenue and Cruger Avenue, County of Bronx, State of New York, plaintiff OSCAR FRANCOIS was in the course of his duties as a deliveryman/driver for the United Parcel Service.

10. At the above referenced date, time and location, defendant ANDREW KELLARD and other New York City Police Officers, acting in a negligent manner, approached the vehicle operated by plaintiff and verbally and physically accosted plaintiff including, but not limited to, throwing him on the floor of the vehicle, punching, kicking and striking plaintiff; then falsely and wrongfully initiated the detention and arrest of plaintiff. Plaintiff was then further accosted by defendant ANDREW KELLARD and other New York City Police Officers

when, after being restrained in handcuffs, plaintiff was slammed against the side of the patrol car and thrown into the back seat of the vehicle.

11. Plaintiff OSCAR FRANCOIS was caused to sustain severe damages and serious injuries, including but not limited to, violations of civil and constitutional rights, unlawful detention, loss of liberty and freedom of movement, physical injuries, conscious pain and suffering, emotional distress, fear, anxiety, indignity, humiliation, embarrassment, extreme mental stress, loss of enjoyment of life, economic damages, damage to his reputation, and other injuries not yet fully ascertained.

**AS AND FOR A FIRST CAUSE OF ACTION**  
**(NEGLIGENCE)**

12. Plaintiff repeats, reiterates and realleges each and every allegation previously set forth as if fully set forth herein.

13. Defendants owed a duty of care to plaintiff to protect him from the unreasonable use of force, wrongful detention and wrongful arrest.

14. Defendants breached their duty of care to plaintiff OSCAR FRANCOIS by negligently permitting plaintiff to sustain physical, mental and economic damages due to their actions of unreasonable use of force, wrongful detention and wrongful arrest.

15. Defendant Police Officer ANDREW KELLARD was negligent in that he unlawfully used excessive force against plaintiff, he wrongfully restrained plaintiff, and he wrongfully arrested plaintiff.

16. Defendant Sergeant TAMEIKA GOODE was negligent in that as acting in a supervisory capacity, he unlawfully permitted the continued restraint, detention, processing, arrest and imprisonment of plaintiff.

17. Defendant CITY OF NEW YORK was negligent in the failure to properly instruct, train and oversee the actions of its employee officers and sergeants with respect to their responsibilities to affect only lawful restraint, detention, arrest and imprisonment of plaintiff.

18. Defendants knew or should have known that the actions taken to restrain, detain, arrest and imprison plaintiff OSCAR FRANCOIS were in direct violation of plaintiff's constitutional right to not be unlawfully restrained, detained, arrested and imprisoned.

19. Defendant CITY OF NEW YORK is liable for the actions of Sergeant TAMEIKA GOODE and Police Officer ANDREW KELLARD as their wrongful conduct occurred while they were acting within the scope of their employment under the theory of *respondeat superior*.

20. These negligent actions of the defendants resulted in plaintiff OSCAR FRANCOIS sustaining serious physical injuries, emotional injuries and economic damages.

**AS AND FOR A SECOND CAUSE OF ACTION**  
**(COMMON LAW EXCESSIVE USE OF FORCE)**

21. Plaintiff repeats, reiterates and realleges each and every allegation previously set forth as if fully set forth herein.

22. By their conduct, defendants ANDREW KELLARD and TAMEIKA GOODE, acting under color of law, deprived plaintiff OSCAR FRANCOIS of his common law rights to be free from excessive and unreasonable force while they restrained, detained, arrested and imprisoned plaintiff OSCAR FRANCOIS.

23. As a result of defendants' unreasonable and excessive use of force, plaintiff OSCAR FRANCOIS sustained serious personal injuries.

24. At no point did plaintiff OSCAR FRANCOIS consent to defendants' unreasonable and excessive use of force.

25. Defendant CITY OF NEW YORK had a duty to train, supervise and control its employees to not use unreasonable and excessive force when restraining, detaining, arresting and imprisoning plaintiff OSCAR FRANCOIS.

26. The CITY OF NEW YORK is liable for the actions of Sergeant TAMEIKA GOODE and Police Officer ANDREW KELLARD as their wrongful conduct occurred while they were acting within the scope of their employment under the theory of *respondeat superior*.

27. The unreasonable and excessive use of force by the defendants resulted in plaintiff OSCAR FRANCOIS sustaining serious physical injuries, emotional injuries and economic damages.

**AS AND FOR A THIRD CAUSE OF ACTION**  
**(COMMON LAW FALSE ARREST AND IMPRISONMENT)**

28. Plaintiff repeats, reiterates and realleges each and every allegation previously set forth as if fully set forth herein.

29. By their conduct, defendants ANDREW KELLARD and TAMEIKA GOODE, acting under color of law, and defendant CITY OF NEW YORK deprived plaintiff OSCAR FRANCOIS of his common law rights to be free from false arrest and false imprisonment.

30. Defendants intended to restrain and confine plaintiff.

31. Plaintiff was aware of the restraint and confinement.

32. Plaintiff did not consent to the restraint and confinement.

33. The CITY OF NEW YORK is liable for the actions of Sergeant TAMEIKA GOODE and Police Officer ANDREW KELLARD as their wrongful conduct occurred while they were acting within the scope of their employment under the theory of *respondeat superior*.

34. The false arrest and imprisonment perpetrated by defendants has resulted in plaintiff OSCAR FRANCOIS sustaining serious physical injuries, emotional injuries and economic damages.

**AS AND FOR A FOURTH CAUSE OF ACTION**  
**(42 U.S.C. § 1983: FOURTH AND FOURTEENTH AMENDMENTS)**

35. Plaintiff repeats, reiterates and realleges each and every allegation previously set forth as if fully set forth herein.

36. By reason of the foregoing, the negligence, common law uses of excessive force, and common law false arrest and imprisonment, the defendants have deprived plaintiff OSCAR FRANCOIS of the rights, remedies, privileges and immunities guaranteed to every citizen of the United States, secured by 42 U.S.C. § 1983, including, but not limited to, rights guaranteed by the Fourth and Fourteenth Amendments to the United States Constitution to be free from the above referenced actions.

37. Defendants Sergeant TAMEIKA GOODE and Police Officer ANDREW KELLARD acted under pretense and color of state law and in their individual and official capacities and within the scope of their employment. Said acts by the defendants were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers. The defendants acted willfully, knowingly, and with the specific intent to deprive Plaintiff of his constitutional rights secured by 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the United States Constitution.

38. Defendant CITY OF NEW YORK knew that the pattern of excessive use of force, and false arrest and imprisonment described above existed in the NYPD prior to and including the time of the offense herein complained of. Defendant CITY OF NEW YORK's failure to take measures to curb this pattern of behavior constitutes acquiescence in the known

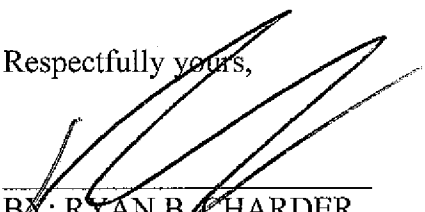


unlawful behavior of their subordinates. The prevalence of these practices and general knowledge of their existence at the time of the occurrence(s) which form the basis of plaintiff's complaint. The CITY OF NEW YORK's conduct has been a substantial factor in the continuation of such unlawful behavior and a proximate cause of the constitutional violations alleged in this complaint.

**WHEREFORE**, plaintiff demands judgment against the defendants in a sum in excess of the jurisdictional limits of the lower Courts of the State of New York, that would otherwise have jurisdiction over this matter together with the costs and disbursements of this action.

Dated: Garden City, New York  
June 22, 2018

Respectfully yours,



BY: RYAN B. CHARDER  
MORICI & MORICI, LLP  
Attorneys for Plaintiff  
OSCAR FRANCOIS  
1399 Franklin Avenue, Suite 202  
Garden City, NY 11530  
(516) 873-1902

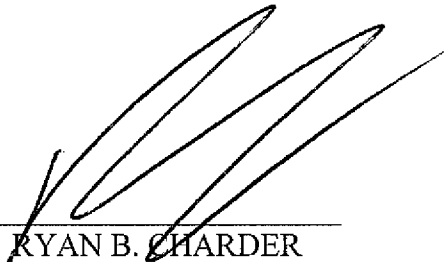
**ATTORNEY VERIFICATION**

**RYAN B. CHARDER**, an attorney duly licensed to practice law in the Courts of the state of New York, affirms the following under the penalty of perjury:

That I am an associate of the law firm **MORICI & MORICI, LLP**, in this action, that I have read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to the knowledge of affirmation except as to the matters therein stated to be alleged upon information and belief, and that as to those matters I believe it to be true.

That the reason why this verification is made by affirmation and not by Plaintiff is that the plaintiff does not reside in the County of Nassau where your affirmant has his office. That the sources of your affirmant's information and the grounds of my belief as to all the matters in said **COMPLAINT** alleged upon information and belief are reports from and communications had with the plaintiff.

DATED: Garden City, New York  
June 22, 2018



RYAN B. CHARDER